



ARIZONA HOUSE OF REPRESENTATIVES FLOOR AMENDMENT EXPLANATION

57th Legislature, 2nd Regular Session

Majority Research Staff

HB 2429: vacation rentals; short-term rentals; occupancy

S/E: same subject

BLISS FLOOR AMENDMENT

1. Specifies a local government may suspend a local regulatory license or permit after one verified violation relating to the failure to remedy a documented building or fire code violation that presents a serious and immediate threat to public health or safety.
2. Allows, rather than requires, a local government that requires a local regulatory permit or license to adopt an ordinance requiring sex offender background checks on a vacation rental or short-term rental booking guest.
3. Makes clarifying changes.

BLISS FLOOR AMENDMENT
HOUSE OF REPRESENTATIVES AMENDMENTS TO H.B. 2429
(Reference to COMMERCE S/E Committee amendment)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

[~~GREEN STRIKEOUT IN BRACKETS~~] indicates new text removed from statute or previously enacted session law.

[~~Green strikeout in brackets~~] indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<~~Green strikeout in carets~~>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Strike everything after the enacting clause and insert:

3 "Section 1. Section 9-500.39, Arizona Revised Statutes, is amended
4 to read:

5 9-500.39. Limits on regulation of vacation rentals and
6 short-term rentals; state preemption; civil
7 penalties; transaction privilege tax license
8 suspension; definitions

9 A. A city or town may not prohibit vacation rentals or short-term
10 rentals.

11 B. A city or town may not restrict the use of or regulate vacation
12 rentals or short-term rentals based on their classification, use or
13 occupancy except as provided in this section. A city or town may regulate
14 vacation rentals or short-term rentals as follows:

15 1. To protect the public's health and safety, including rules and
16 regulations related to fire and building codes, health and sanitation,
17 transportation or traffic control and solid or hazardous waste and
18 pollution control, if the city or town demonstrates that the rule or
19 regulation is for the primary purpose of protecting the public's health
20 and safety.

21 2. To adopt and enforce use and zoning ordinances, including
22 ordinances related to noise, protection of welfare, property maintenance
23 and other nuisance issues, if the ordinance is applied in the same manner
24 as other property classified under sections 42-12003 and 42-12004.

25 3. To limit or prohibit the use of a vacation rental or short-term
26 rental for the purposes of housing sex offenders, operating or maintaining
27 a sober living home, selling illegal drugs, liquor control or pornography,
28 obscenity, nude or topless dancing and other adult-oriented businesses.

29 4. To require the owner of a vacation rental or short-term rental
30 to provide the city or town with emergency contact information for the
31 owner or the owner's designee who is responsible for responding to

1 complaints or emergencies in a timely manner in person if required by
2 public safety personnel, over the phone or by email at any time of day
3 before offering for rent or renting the vacation rental or short-term
4 rental. In addition to any other penalty imposed pursuant to this
5 section, the city or town may impose a civil penalty of up to \$1,000
6 against the owner for every thirty days the owner fails to provide contact
7 information as prescribed by this paragraph. The city or town shall
8 provide thirty days' notice to the owner before imposing the initial civil
9 penalty.

10 5. To require the owner of a vacation rental or short-term rental
11 to obtain and maintain a local regulatory permit or license. As a
12 condition of issuance of a permit or license, the application for the
13 permit or license may require an applicant to provide only the following:

14 (a) The name, address, telephone number and email address for the
15 owner or owner's agent.

16 (b) The address of the vacation rental or short-term rental.

17 (c) Proof of compliance with section 42-5005.

18 (d) Contact information required pursuant to paragraph 4 of this
19 subsection.

20 (e) Acknowledgment of an agreement to comply with all applicable
21 laws, regulations and ordinances.

22 (f) A fee not to exceed the actual cost of issuing the permit or
23 license or \$250, whichever is less.

24 6. To require, before offering a vacation rental or short-term
25 rental for rent for the first time, the owner or the owner's designee of a
26 vacation rental or short-term rental to notify all single-family
27 residential properties adjacent to and directly and diagonally across the
28 street from the vacation rental or short-term rental. Notice shall be
29 deemed sufficient in a multifamily residential building if given to
30 residents on the same building floor. A city or town may require
31 additional notification pursuant to this paragraph if the contact
32 information previously provided changes. Notification provided in
33 compliance with this paragraph shall include the permit or license number
34 if required by the city or town, the address of the vacation rental or
35 short-term rental and the information required pursuant to paragraph 4 of
36 this subsection. The owner or the owner's designee shall demonstrate
37 compliance with this paragraph by providing the city or town with an
38 attestation of notification compliance that consists of the following
39 information:

40 (a) The permit or license number of the vacation rental or
41 short-term rental, if required by the city or town.

42 (b) The address of each property notified.

43 (c) A description of the manner in which the owner or owner's
44 designee chose to provide notification to each property subject to
45 notification.

46 (d) The name and contact information of the person attesting to
47 compliance with this paragraph.

48 7. To require the owner or owner's designee of a vacation rental or
49 short-term rental to display the local regulatory permit number or license
50 number, if any, on each advertisement for a vacation rental or short-term
51 rental that the owner or owner's designee maintains. A city or town that

1 does not require a local regulatory permit or license may require the
2 owner or owner's designee of a vacation rental or short-term rental to
3 display the transaction privilege tax license number required by section
4 42-5042 on each advertisement for a vacation rental or short-term rental
5 that the owner or owner's designee maintains.

6 8. To require the vacation rental or short-term rental to maintain
7 liability insurance appropriate to cover the vacation rental or short-term
8 rental in the aggregate of at least \$500,000 or to advertise and offer
9 each vacation rental or short-term rental through an online lodging
10 marketplace that provides equal or greater coverage.

11 9. To require the owner of a vacation rental or short-term rental
12 to reside on the property if the property contains an accessory dwelling
13 unit and if a certificate of occupancy, certificate of completion or
14 similar final approval for the accessory dwelling unit was issued by the
15 municipality on or after September 14, 2024. This paragraph does not
16 apply to an owner of a vacation rental or short-term rental if the
17 property contains an accessory dwelling unit and the certificate of
18 completion, the certificate of occupancy or a similar final approval for
19 the accessory dwelling unit was issued on or before September 13, 2024.

20 10. ~~[FOR LIMITS ON OCCUPANCY,]~~ ~~[TO LIMIT]~~ THE MAXIMUM OCCUPANCY FOR
21 AN OVERNIGHT STAY IN A VACATION RENTAL OR SHORT-TERM RENTAL ~~[THAT]~~ SHALL
22 BE CALCULATED AS FOLLOWING:

23 (a) THE MAXIMUM OCCUPANCY FOR OVERNIGHT STAYS FOR A VACATION RENTAL
24 OR SHORT-TERM RENTAL UNIT SHALL BE LIMITED TO TWO ADULTS PER SLEEPING AREA
25 PLUS UP TO TWO ADDITIONAL PERSONS, NOT INCLUDING MINORS.

26 (b) OCCUPANCY LIMITS FOR VACATION RENTAL OR SHORT-TERM RENTAL UNITS
27 SHALL ONLY APPLY TO GUESTS STAYING OVERNIGHT.

28 C. A city or town that requires a local regulatory permit or
29 license pursuant to this section shall issue or deny the permit or license
30 within seven business days of receipt of the information required by
31 subsection B, paragraph 5 of this section and otherwise in accordance with
32 section 9-835, except that a city or town may deny issuance of a permit or
33 license only for any of the following:

34 1. Failure to provide the information required by subsection B,
35 paragraph 5, subdivisions (a) through (e) of this section.

36 2. Failure to pay the required permit or license fee.

37 3. At the time of application the owner has a suspended permit or
38 license for the same vacation rental or short-term rental.

39 4. The applicant provides false information.

40 5. The owner or owner's designee of a vacation rental or short-term
41 rental is a registered sex offender or has been convicted of any felony
42 offense that resulted in death or serious physical injury or any felony
43 use of a deadly weapon within the past five years.

44 6. THE APPLICANT HAS UNPAID FINES OR CIVIL PENALTIES FOR VIOLATIONS
45 OF THE CITY'S OR TOWN'S VACATION RENTAL OR SHORT-TERM RENTAL ORDINANCE
46 ASSOCIATED WITH THAT PROPERTY.

47 D. A city or town that requires a local regulatory permit or
48 license pursuant to this section shall adopt an ordinance to allow the
49 city or town to initiate an administrative process to suspend a local
50 regulatory permit or license for a period of up to twelve months for the
51 following verified violations associated with a property:

1 1. Three verified violations within a ~~twelve-month~~ TWENTY-FOUR-
2 MONTH period, not including any verified violation based on an aesthetic,
3 solid waste disposal or vehicle parking violation that is not also a
4 serious threat to public health and safety.

5 2. One verified violation that results in or constitutes any of the
6 following:

7 (a) A felony offense committed at or in the vicinity of a vacation
8 rental or short-term rental by the vacation rental or short-term rental
9 owner or owner's designee.

10 (b) A serious physical injury or wrongful death at or related to a
11 vacation rental or short-term rental resulting from the knowing,
12 intentional or reckless conduct of the vacation rental or short-term
13 rental owner or owner's designee.

14 (c) An owner or owner's designee knowingly or intentionally housing
15 a sex offender, allowing offenses related to adult-oriented businesses,
16 sexual offenses or prostitution, or operating or maintaining a sober
17 living home, in violation of a regulation or ordinance adopted pursuant to
18 subsection B, paragraph 3 of this section.

19 (d) An owner or owner's designee knowingly or intentionally
20 allowing the use of a vacation rental or short-term rental for a special
21 event that would otherwise require a permit or license pursuant to a city
22 or town ordinance or a state law or rule or for a retail, restaurant,
23 banquet space or other similar use.

24 (e) A VIOLATION OF A BUILDING CODE THAT PRESENTS A SERIOUS THREAT
25 TO PUBLIC HEALTH OR SAFETY THAT IS RELATED TO CONSTRUCTING, MODIFYING OR
26 ALTERING A VACATION RENTAL OR SHORT-TERM RENTAL WITHOUT A REQUIRED
27 BUILDING PERMIT OR FAILING TO REMEDY ~~[AN UNSAFE OR UNSANITARY CONDITION]~~
28 [A DOCUMENTED VIOLATION OF AN ADOPTED BUILDING OR FIRE CODE THAT PRESENTS
29 A SERIOUS AND IMMEDIATE THREAT TO PUBLIC HEALTH OR SAFETY].

30 3. Notwithstanding paragraphs 1 and 2 of this subsection, any
31 attempted or completed felony offense, arising from the occupancy or use
32 of a vacation rental or short-term rental, that results in a death, or
33 actual or attempted serious physical injury, shall be grounds for judicial
34 relief in the form of a suspension of the property's use as a vacation
35 rental or short-term rental for a period of time that shall not exceed
36 twelve months.

37 E. A city or town that requires A LOCAL REGULATORY PERMIT OR
38 LICENSE PURSUANT TO THIS SECTION ~~[SHALL]~~ [MAY] ADOPT AN ORDINANCE
39 REQUIRING sex offender background checks on a vacation rental or
40 short-term rental BOOKING guest AND shall waive the requirement if an
41 online lodging marketplace performs a sex offender background check of the
42 booking guest.

43 F. Notwithstanding any other law, a city or town may impose a civil
44 penalty of the following amounts against an owner of a vacation rental or
45 short-term rental if the owner receives one or more verified violations
46 related to the same vacation rental or short-term rental property within
47 the same twelve-month period:

48 1. Up to \$500 or up to an amount equal to one night's rent for the
49 vacation rental or short-term rental as advertised, whichever is greater,
50 for the first verified violation.

1 2. Up to \$1,000 or up to an amount equal to two nights' rent for
2 the vacation rental or short-term rental as advertised, whichever is
3 greater, for the second verified violation.

4 3. Up to \$3,500 or up to an amount equal to three nights' rent for
5 the vacation rental or short-term rental as advertised, whichever is
6 greater, for a third and any subsequent verified violation.

7 G. A vacation rental or short-term rental that fails to apply for a
8 local regulatory permit or license in accordance with subsection B,
9 paragraph 5 of this section, within thirty days of the local regulatory
10 permit or license application process being made available by the city or
11 town issuing such permits or licenses, must cease operations. In addition
12 to any civil penalties imposed pursuant to subsection F of this section, a
13 city or town may impose a civil penalty of up to \$1,000 per month against
14 the owner if the owner or owner's designee fails to apply for a regulatory
15 permit or license within thirty days after receiving written notice of the
16 failure to comply with subsection B, paragraph 5 of this section.

17 H. If multiple verified violations arise out of the same response
18 to an incident at a vacation rental or short-term rental, those verified
19 violations are considered one verified violation for the purpose of
20 assessing civil penalties or suspending the regulatory permit or license
21 of the owner pursuant to this section.

22 I. If the owner of a vacation rental or short-term rental has
23 provided contact information to a city or town pursuant to subsection B,
24 paragraph 4 of this section and if the city or town issues a citation for
25 a violation of the city's or town's applicable laws, regulations or
26 ordinances or a state law that occurred on the owner's vacation rental or
27 short-term rental property, the city or town shall make a reasonable
28 attempt to notify the owner or the owner's designee of the citation within
29 seven business days after the citation is issued using the contact
30 information provided pursuant to subsection B, paragraph 4 of this
31 section. If the owner of a vacation rental or short-term rental has not
32 provided contact information pursuant to subsection B, paragraph 4 of this
33 section, the city or town is not required to provide such notice.

34 J. This section does not exempt an owner of a residential rental
35 property, as defined in section 33-1901, from maintaining with the
36 assessor of the county in which the property is located information
37 required under title 33, chapter 17, article 1.

38 K. A vacation rental or short-term rental may not be used for
39 nonresidential uses, including for a special event that would otherwise
40 require a permit or license pursuant to a city or town ordinance or a
41 state law or rule or for a retail, restaurant, banquet space or other
42 similar use.

43 L. For the purposes of this section:

44 1. "Accessory dwelling unit" has the same meaning prescribed in
45 section 9-461.18.

46 2. "Online lodging marketplace" has the same meaning prescribed in
47 section 42-5076.

48 3. "Transient" has the same meaning prescribed in section 42-5070.

49 4. "Vacation rental" or "short-term rental":

50 (a) Means any individually or collectively owned single-family or
51 one-to-four-family house or dwelling unit or any unit or group of units in

1 a condominium or cooperative that is also a transient public lodging
2 establishment or owner-occupied residential home offered for transient use
3 if the accommodations are not classified for property taxation under
4 section 42-12001.

5 (b) Does not include a unit that is used for any nonresidential
6 use, including retail, restaurant, banquet space, event center or another
7 similar use.

8 5. "Verified violation" means a finding of guilt or civil
9 responsibility for violating any state law or local ordinance relating to
10 a purpose prescribed in subsection B, D, F or K of this section that has
11 been finally adjudicated.

12 Sec. 2. Section 11-269.17, Arizona Revised Statutes, is amended to
13 read:

14 11-269.17. Limits on regulation of vacation rentals and
15 short-term rentals; state preemption; civil
16 penalties; transaction privilege tax license
17 suspension; definitions

18 A. A county may not prohibit vacation rentals or short-term
19 rentals.

20 B. A county may not restrict the use of or regulate vacation
21 rentals or short-term rentals based on their classification, use or
22 occupancy except as provided in this section. A county may regulate
23 vacation rentals or short-term rentals within the unincorporated areas of
24 the county as follows:

25 1. To protect the public's health and safety, including rules and
26 regulations related to fire and building codes, health and sanitation,
27 transportation or traffic control and solid or hazardous waste and
28 pollution control, if the county demonstrates that the rule or regulation
29 is for the primary purpose of protecting the public's health and safety.

30 2. To adopt and enforce use and zoning ordinances, including
31 ordinances related to noise, protection of welfare, property maintenance
32 and other nuisance issues, if the ordinance is applied in the same manner
33 as other property classified under sections 42-12003 and 42-12004.

34 3. To limit or prohibit the use of a vacation rental or short-term
35 rental for the purposes of housing sex offenders, operating or maintaining
36 a sober living home, selling illegal drugs, liquor control or pornography,
37 obscenity, nude or topless dancing and other adult-oriented businesses.

38 4. To require the owner of a vacation rental or short-term rental
39 to provide the county with emergency contact information for the owner or
40 the owner's designee who is responsible for responding to complaints or
41 emergencies in a timely manner in person if required by public safety
42 personnel, over the phone or by email at any time of day before offering
43 for rent or renting the vacation rental or short-term rental. In addition
44 to any other penalty imposed pursuant to this section, the county may
45 impose a civil penalty of up to \$1,000 against the owner for every thirty
46 days the owner fails to provide contact information as prescribed by this
47 paragraph. The county shall provide thirty days' notice to the owner
48 before imposing the initial civil penalty.

49 5. To require the owner of a vacation rental or short-term rental
50 to obtain and maintain a local regulatory permit or license. As a

1 condition of issuance of a permit or license, the application for the
2 permit or license may require an applicant to provide only the following:

3 (a) The name, address, telephone number and email address for the
4 owner or owner's agent.

5 (b) The address of the vacation rental or short-term rental.

6 (c) Proof of compliance with section 42-5005.

7 (d) Contact information required pursuant to paragraph 4 of this
8 subsection.

9 (e) Acknowledgment of an agreement to comply with all applicable
10 laws, regulations and ordinances.

11 (f) A fee not to exceed the actual cost of issuing the permit or
12 license or \$250, whichever is less.

13 6. To require, before offering a vacation rental or short-term
14 rental for rent for the first time, the owner or the owner's designee of a
15 vacation rental or short-term rental to notify all single-family
16 residential properties adjacent to and directly and diagonally across the
17 street from the vacation rental or short-term rental. Notice shall be
18 deemed sufficient in a multifamily residential building if given to
19 residents on the same building floor. A county may require additional
20 notification pursuant to this paragraph if the contact information
21 previously provided changes. Notification provided in compliance with
22 this paragraph shall include the permit or license number if required by
23 the county, the address of the vacation rental or short-term rental and
24 the information required pursuant to paragraph 4 of this subsection. The
25 owner or the owner's designee shall demonstrate compliance with this
26 paragraph by providing the county with an attestation of notification
27 compliance that consists of the following information:

28 (a) The permit or license number of the vacation rental or
29 short-term rental, if required by the county.

30 (b) The address of each property notified.

31 (c) A description of the manner in which the owner or owner's
32 designee chose to provide notification to each property subject to
33 notification.

34 (d) The name and contact information of the person attesting to
35 compliance with this paragraph.

36 7. To require the owner or owner's designee of a vacation rental or
37 short-term rental to display the local regulatory permit number or license
38 number, if any, on each advertisement for a vacation rental or short-term
39 rental that the owner or owner's designee maintains. A county that does
40 not require a local regulatory permit or license may require the owner or
41 owner's designee of a vacation rental or short-term rental to display the
42 transaction privilege tax license number required by section 42-5042 on
43 each advertisement for a vacation rental or short-term rental that the
44 owner or owner's designee maintains.

45 8. To require the vacation rental or short-term rental to maintain
46 liability insurance appropriate to cover the vacation rental or short-term
47 rental in the aggregate of at least \$500,000 or to advertise and offer
48 each vacation rental or short-term rental through an online lodging
49 marketplace that provides equal or greater coverage.

50 9. To require the owner of a vacation rental or short-term rental
51 to reside on the property if the property contains an accessory dwelling

unit and if a certificate of occupancy, certificate of completion or similar final approval for the accessory dwelling unit was issued by the county on or after September 14, 2024. This paragraph does not apply to an owner of a vacation rental or short-term rental if the property contains an accessory dwelling unit and the certificate of completion, the certificate of occupancy or a similar final approval for the accessory dwelling unit was issued on or before September 13, 2024.

10. ~~[FOR LIMITS ON OCCUPANCY,]~~ ~~[TO LIMIT]~~ THE MAXIMUM OCCUPANCY FOR AN OVERNIGHT STAY IN A VACATION RENTAL OR SHORT-TERM RENTAL ~~[THAT]~~ SHALL BE CALCULATED AS FOLLOWING:

(a) THE MAXIMUM OCCUPANCY FOR OVERNIGHT STAYS FOR A VACATION RENTAL OR SHORT-TERM RENTAL UNIT SHALL BE LIMITED TO TWO ADULTS PER SLEEPING AREA PLUS UP TO TWO ADDITIONAL PERSONS, NOT INCLUDING MINORS.

(b) OCCUPANCY LIMITS FOR UNITS SHALL ONLY APPLY TO GUESTS STAYING OVERNIGHT.

C. A county that requires a local regulatory permit or license pursuant to this section shall issue or deny the permit or license within seven business days of receipt of the information required by subsection B, paragraph 5 of this section and otherwise in accordance with section 11-1602, except that a county may deny issuance of a permit or license only for any of the following:

1. Failure to provide the information required by subsection B, paragraph 5, subdivisions (a) through (e) of this section.

2. Failure to pay the required permit or license fee.

3. At the time of application the owner has a suspended permit or license for the same vacation rental or short-term rental.

4. The applicant provides false information.

5. The owner or owner's designee of a vacation rental or short-term rental is a registered sex offender or has been convicted of any felony offense that results in death or serious physical injury or any felony use of a deadly weapon within the past five years.

D. A county that requires a local regulatory permit or license pursuant to this section shall adopt an ordinance to allow the county to initiate an administrative process to suspend a local regulatory permit or license for a period of up to twelve months for the following verified violations associated with a property:

1. Three verified violations within a ~~twelve-month~~ TWENTY-FOUR-MONTH period, not including any verified violation based on an aesthetic, solid waste disposal or vehicle parking violation that is not also a serious threat to public health or safety.

2. One verified violation that results in or constitutes any of the following:

(a) A felony offense committed at or in the vicinity of a vacation rental or short-term rental by the vacation rental or short-term rental owner or owner's designee.

(b) A serious physical injury or wrongful death at or related to a vacation rental or short-term rental resulting from the knowing, intentional or reckless conduct of the vacation rental or short-term rental owner or owner's designee.

(c) An owner or owner's designee knowingly or intentionally housing a sex offender, allowing offenses related to adult-oriented businesses,

1 sexual offenses or prostitution, or operating or maintaining a sober
2 living home, in violation of regulation or ordinance adopted pursuant to
3 subsection B, paragraph 3 of this section.

4 (d) An owner or owner's designee knowingly or intentionally
5 allowing the use of a vacation rental or short-term rental for a special
6 event that would otherwise require a permit or license pursuant to a
7 county ordinance or a state law or rule or for a retail, restaurant,
8 banquet space or other similar use.

9 (e) A VIOLATION OF A BUILDING CODE THAT PRESENTS A SERIOUS THREAT
10 TO PUBLIC HEALTH OR SAFETY THAT IS RELATED TO CONSTRUCTING, MODIFYING OR
11 ALTERING A VACATION RENTAL OR SHORT-TERM RENTAL WITHOUT A REQUIRED
12 BUILDING PERMIT OR FAILING TO REMEDY ~~[AN UNSAFE OR UNSANITARY CONDITION]~~
13 [A DOCUMENTED VIOLATION OF AN ADOPTED BUILDING OR FIRE CODE THAT PRESENTS
14 A SERIOUS AND IMMEDIATE THREAT TO PUBLIC HEALTH OR SAFETY].

15 3. Notwithstanding paragraphs 1 and 2 of this subsection, any
16 attempted or completed felony offense, arising from the occupancy or use
17 of a vacation rental or short-term rental, that results in a death, or
18 actual or attempted serious physical injury, shall be grounds for judicial
19 relief in the form of a suspension of the property's use as a vacation
20 rental or short-term rental for a period of time that shall not exceed
21 twelve months.

22 E. A county that requires A LOCAL REGULATORY PERMIT OR LICENSE
23 PURSUANT TO THIS SECTION ~~[SHALL]~~ [MAY] ADOPT AN ORDINANCE REQUIRING sex
24 offender background checks on a vacation rental or short-term rental
25 BOOKING guest AND shall waive the requirement if an online lodging
26 marketplace performs a sex offender background check of the booking guest.

27 F. Notwithstanding any other law, a county may impose a civil
28 penalty of the following amounts against an owner of a vacation rental or
29 short-term rental if the owner receives one or more verified violations
30 related to the same vacation rental or short-term rental property within
31 the same twelve-month period:

32 1. Up to \$500 or up to an amount equal to one night's rent for the
33 vacation rental or short-term rental as advertised, whichever is greater,
34 for the first verified violation.

35 2. Up to \$1,000 or up to an amount equal to two nights' rent for
36 the vacation rental or short-term rental as advertised, whichever is
37 greater, for the second verified violation.

38 3. Up to \$3,500 or up to an amount equal to three nights' rent for
39 the vacation rental or short-term rental as advertised, whichever is
40 greater, for a third and any subsequent verified violation.

41 G. A vacation rental or short-term rental that fails to apply for a
42 local regulatory permit or license in accordance with subsection B,
43 paragraph 5 of this section, within thirty days of the local regulatory
44 permit or license application process being made available by the county
45 issuing such permits or licenses, must cease operations. In addition to
46 any civil penalties imposed pursuant to subsection F of this section, a
47 county may impose a civil penalty of up to \$1,000 per month against the
48 owner if the owner or owner's designee fails to apply for a regulatory
49 permit or license within thirty days after receiving written notice of the
50 failure to comply with subsection B, paragraph 5 of this section.

1 H. If multiple verified violations arise out of the same response
2 to an incident at a vacation rental or short-term rental, those verified
3 violations are considered one verified violation for the purpose of
4 assessing civil penalties or suspending the regulatory permit or license
5 of the owner pursuant to this section.

6 I. If the owner of a vacation rental or short-term rental has
7 provided contact information to a county pursuant to subsection B,
8 paragraph 4 of this section and if the county issues a citation for a
9 violation of the county's applicable laws, regulations or ordinances or a
10 state law that occurred on the owner's vacation rental or short-term
11 rental property, the county shall make a reasonable attempt to notify the
12 owner or the owner's designee of the citation within seven business days
13 after the citation is issued using the contact information provided
14 pursuant to subsection B, paragraph 4 of this section. If the owner of a
15 vacation rental or short-term rental has not provided contact information
16 pursuant to subsection B, paragraph 4 of this section, the county is not
17 required to provide such notice.

18 J. This section does not exempt an owner of a residential rental
19 property, as defined in section 33-1901, from maintaining with the
20 assessor of the county in which the property is located information
21 required under title 33, chapter 17, article 1.

22 K. A vacation rental or short-term rental may not be used for
23 nonresidential uses, including for a special event that would otherwise
24 require a permit or license pursuant to a county ordinance or a state law
25 or rule or for a retail, restaurant, banquet space or other similar use.

26 L. For the purposes of this section:

27 1. "Accessory dwelling unit" has the same meaning prescribed in
28 section 11-810.01.

29 2. "Online lodging marketplace" has the same meaning prescribed in
30 section 42-5076.

31 3. "Transient" has the same meaning prescribed in section 42-5070.

32 4. "Vacation rental" or "short-term rental":

33 (a) Means any individually or collectively owned single-family or
34 one-to-four-family house or dwelling unit or any unit or group of units in
35 a condominium or cooperative that is also a transient public lodging
36 establishment or owner-occupied residential home offered for transient use
37 if the accommodations are not classified for property taxation under
38 section 42-12001.

39 (b) Does not include a unit that is used for any nonresidential
40 use, including retail, restaurant, banquet space, event center or another
41 similar use.

42 5. "Verified violation" means a finding of guilt or civil
43 responsibility for violating any state law or local ordinance relating to
44 a purpose prescribed in subsection B, D, F or K of this section that has
45 been finally adjudicated."

- 1 Enroll and engross to conform
- 2 Amend title to conform

SELINA BLISS

2429FloorBLISS.docx
02/27/2026
08:55 AM
H: PB/1s
130MREIES